

The Agency for the Protection of Personal Data has prohibited the City of Zagreb, the City Office for Reconstruction, Construction, Spatial Planning, Construction, Communal Affairs, and Traffic, as the data controller, from allowing access to and/or the extraction of recordings made by video surveillance of public areas to the Department of Communal Inspection, particularly for the purpose of addressing violations against individuals who improperly dispose of waste on public property. The City of Zagreb, the City Office for Reconstruction, Construction, Spatial Planning, Construction, Communal Affairs, and Traffic has been ordered to, within 90 days, among other things, establish an appropriate internal legal enforcement framework for managing the video surveillance system that will determine and implement policies and procedures related to the video surveillance of public areas.

Namely, the video surveillance system in public areas of the City of Zagreb has been set up for the purpose of monitoring improperly stopped and parked vehicles, managing traffic, issuing orders for the relocation of improperly stopped and parked vehicles, and taking measures in accordance with the powers prescribed by the Road Traffic Safety Act and the Misdemeanor Act, which are monitored by authorized traffic inspectors within the Department of Traffic Inspection. Following complaints from citizens and media reports about the possible use of the video surveillance system installed in public areas of the City of Zagreb for the purpose of identifying violations against individuals who improperly dispose of waste on public property, the Agency conducted supervisory proceedings to determine all circumstances regarding the processing of personal data through video surveillance. During the supervisory proceedings, it was established that the City of Zagreb, the City Office for Reconstruction, Construction, Spatial Planning, Construction, Communal Affairs, and Traffic:

1. Maintains a record of processing activities related to the processing of personal data through video surveillance covering public areas in the City of Zagreb,
2. Contrary to the provisions of Article 30, paragraph 1 of the General Data Protection Regulation, has not implemented appropriate organizational measures to ensure an adequate level of security for the processing of personal data through video surveillance covering public areas in the City of Zagreb, and contrary to the provisions of Article 32, paragraphs 1 and 2 of the General Data Protection Regulation and Article 28, paragraphs 1, 3, and 4 of the Act on the Implementation of the General Data Protection Regulation.

Namely, although according to the statements of responsible persons there is a general possibility for communal inspectors to enter the so-called Operational Communication Center, primarily according to the needs and independent assessment of the communal inspectors, and thus the possibility of access, as well as the eventual submission of requests for the extraction of recordings made by the video surveillance system in proceedings within their jurisdiction, it was established that the data controller did not foresee, and in this regard, did not document the internal legal enforcement framework for managing the video surveillance system, including procedures, processes, and protocols related to the potential disclosure and/or extraction, including the submission and receipt of requests from employees of the Department of Communal Inspection for the disclosure of recordings made using the video surveillance system in public areas.

The public area was not adequately marked as being under video surveillance, in accordance with the provision of Article 13, paragraph 1 of the General Data Protection Regulation, in relation to Article 27, paragraph 2 of the Act on the Implementation of the General Data Protection Regulation.

According to the findings, in addition to the aforementioned measures, the City of Zagreb, the City Office for Reconstruction, Construction, Spatial Planning, Construction, Communal Affairs, and Traffic, as the data controller, has been ordered to place signs indicating that the public area is under video surveillance, which must be visible no later than upon entering the recording perimeter of each of the locations where cameras are installed, which constitute the video surveillance system of public areas in the City of Zagreb, in accordance with Article 27, paragraph 1 of the Act on the Implementation of the General Data Protection Regulation. Furthermore, the Agency has ordered the data controller to align the content of all notifications regarding the existence of the video surveillance system of public areas, in accordance with the provisions of Article 27, paragraph 2 of the Act on the Implementation of

the General Data Protection Regulation.